

25CV05696 Malkiat Mand v. Albertsons Companies, Inc.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-29

Motion: Motion of Defendant for Judgment on the Pleadings

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv05696-1>

Source SHA-256: 1d07ad91ebf258f2d4e89625a66a1a8e34e135d64813de1a3ec57d3edefc0707

Tentative Ruling: Malkiat Mand v. Albertsons Companies, Inc.

Case Number

25CV05696

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/29/2026 - 10:00

Nature of Proceedings

Motion of Defendant for Judgment on the Pleadings

Tentative Ruling

For Plaintiff Malkiat Mand: Self-represented

For Defendant Albertsons LLC: Gregory E. Stone, Amy W. Lewis, Stone Dean LLP

RULING

The motion of Defendant Albertsons LLC, for judgment on the pleadings is granted, with leave to amend. Plaintiff shall file and serve his amended complaint, if any, no later than August 12, 2026.

Background

As alleged in Plaintiff's complaint in paragraph GN-1:

Defendant Albertsons LLC (Albertsons), sued as Albertsons Companies, Inc., owned and operated the Albertsons store located at 7127 Hollister Ave #27, Goleta, California (the Property).

On August 25, 2023, Plaintiff Malkiat Mand entered the Property at 7 a.m. to shop and went to the restroom. Because of the lack of signage indicating a wet floor, Mand slipped and fell, causing injuries to his foot, ankle, and shoulder.

Plaintiff exited the restroom to complain to management when a patron came from behind and punched Plaintiff in the right shoulder in an unprovoked attack. Plaintiff believes the instigation by a store clerk caused this patron to attack Plaintiff in a violent manner. Plaintiff also believes that employees of Albertsons made false statements in an attempt to conceal the crimes that occurred inside the Property.

On September 8, 2025, Mand filed his complaint in this action against Albertsons.

On April 8, 2026, the Court granted a motion to strike the punitive damages portion of Plaintiff's complaint, and Plaintiff was ordered to file and serve a first amended complaint no later than April 23, 2026. He failed to do so.

On May 4, 2026, Albertsons answered the complaint with a general denial and 18 affirmative defenses, including the affirmative defense that the action is barred by the applicable statute of limitations.

On June 30, 2026, Albertsons filed the present motion for judgment on the pleadings, arguing that the action is time-barred pursuant to the two-year statute of limitations applicable to personal injury actions. Plaintiff was properly served with the motion on June 30, 2026, but has not filed opposition or any other response to the motion.

Analysis:

A Defendant may move for judgment on the pleadings if "[t]he complaint does not state facts sufficient to constitute a cause of action against that Defendant." (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).)

"The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. Where the motion is based on a matter of which the Court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the Court may otherwise permit." (Code Civ. Proc., § 438, subd. (d).)

"Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed." (Alameda County Waste Management Authority v. Waste Connections US, Inc. (2021) 67 Cal.App.5th 1162, 1174.)

"All properly pleaded, material facts are deemed true, but not contentions, deductions, or conclusions of fact or law; judicially noticeable matters may be considered. [Citations.]" (Kapsimalis v. Allstate Ins. Co. (2002) 104 Cal.App.4th 667, 672.)

"An action for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another" must be commenced within two years. (Code Civ. Proc., § 335.1.)

“An action is commenced, within the meaning of this Title, when the complaint is filed.” (Code Civ. Proc., § 350.)

Plaintiff alleges that he was injured on August 25, 2023. He also alleges that he broke his ankle and tore tendons in his left foot as he tried to flee from a store clerk. He additionally alleges that he injured his shoulder and was attacked by a store patron. The complaint unequivocally demonstrates that Plaintiff was aware that he was injured on that date.

Because the injuries occurred on August 25, 2023, the two-year statute of limitations ran on August 25, 2025. As the complaint was not filed until September 8, 2025, the action is barred.

The motion for judgment on the pleadings will be granted. Although Plaintiff did not file an opposition requesting leave to amend should the Court grant the motion, Plaintiff will be given the opportunity to file an amended pleading that alleges facts sufficient to establish that the action is not barred by the statute of limitations.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US